

- a) The date of recordation of the claim of lien. A certified copy of the claim of lien attached to the petition.
- b) The county in which the claim of lien is recorded.
- c) The book and page or series number of the place in the official records where the claim of lien is recorded.
- d) The legal description of the property subject to the claim of lien.
- e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.
- f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.
- g) Whether an action to enforce the lien is pending.
- h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien.

Petitioner's Verified Petition does not satisfy any of the requirements set forth in Civil Code § 8484. The Petition is **DENIED** without prejudice. No proposed order has been lodged as required by Local Rule 5.17(D). Petitioner shall prepare the order.

GUERRA VS. KNAUF INSULATION, INC.

Case Number: 24CV-0206404

Tentative Ruling on Demurrer or in the Alternative Motion to Strike: This is a PAGA action arising out of Plaintiff's employment with Knauf Insulation, Inc. Defendant demurs, or in the Alternative moves to strike portions of Plaintiff's Complaint. The operative complaint is the Second Amended Complaint filed February 10, 2025. Plaintiff opposes the motion.

Meet and Confer: CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Scott Witlin indicates compliance with the requirements of the CCP § 430.41.

Request for Judicial Notice: Pursuant to Evidence Code sections 451 and 452, the Defendant requests the Court take judicial notice of: 1) the Collective Bargaining Agreement between Knauf and Teamsters Local 137, 2) Second Amended Complaint in related case, currently pending in Eastern District, 3) Original Complaint filed in related case, currently pending in Eastern District, 4) California Industrial Welfare Commission's Wage Order No. 1-2201, 5) California Minimum Wage Notice in Effect January 1, 2021 – January 1, 2024. The request is denied as to the Collective Bargaining Agreement and granted as to the remainder pursuant to Evid. Code 452(c) and (d).

Merits: A demurrer should be sustained if "there is another action pending between the same parties on the same cause of action." CCP § 430.10(c). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of ruling on a

demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff's causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Here, Defendant's Notice of Motion indicates they are moving for an order dismissing Plaintiff's claim for meal break violations and PAGA claim pursuant to California Code of Civil Procedure, Rule 12(b), or, in the alternative, strike portions of Plaintiff's Complaint. The Notice does not indicate which portions, in violation of CRC 3.1322. There is no CCP Rule 12(b). The moving papers indicate that Defendant moves to stay the instant action pursuant to CCP § 430.10(c). Defendant argues that Case No. 2:24-cv-02751-TLN-DMC (the "related case"), currently pending in the Eastern District of California is "another action pending between the same parties on the same cause of action," which requires this Court to stay the instant PAGA action.

The Court takes judicial notice that the related case is a class action. It does not assert any PAGA claims. California case law is clear that a class action and a PAGA action involve different claims for different harms, and different parties. *Howitson v. Evans Hotels, LLC* (2022) 81 Cal. App. 5th 475, 482. California courts have repeatedly held that applying claim preclusion under these circumstances would undermine the Legislature's intent. *See, e.g., Id.* at 492. The demurrer on the grounds of CCP § 430.10(c) is **OVERRULED**.

The moving papers next argue that, should the Court decide not to stay the action, it must dismiss Plaintiff's meal period claims under the principals of federal labor law preemption. A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal.App.3d 24. It is proper for the Court to strike any irrelevant, false or improper matter. CCP § 436(a). The Court can also strike any part of a pleading that is not drawn or filed in conformity with California law. CCP § 436(b). Defendant fails to identify which portions of the Second Amended Complaint it seeks to strike. The Court infers Defendant seeks to strike paragraph 17. This argument is based on Defendant's reading of a Collective Bargaining Agreement between Defendant and Plaintiff's representative Teamsters Local 137. The Court declines to take judicial notice of the CBA, or to interpret its meaning or applicability at the pleading stage. The motion to strike is **DENIED**.

Defendant's Demurrer is OVERRULED, the alternative Motion to Strike is DENIED. No proposed order has been lodged as required by Local Rule 5.17(D). Moving party shall prepare the order.

HADLEY, ET AL. VS. AMERICAN HONDA MOTOR CO, INC.

Case Number: 23CV-0201803

Tentative Ruling on Motion for Relief under CCP § 473(b): This is a lemon law action concerning a 2020 Honda Pilot. Plaintiffs seek relief, pursuant to CCP § 473(b), from this Court's March 3, 2025 Order denying the Motion to Compel the Deposition of Defendant's Person Most Knowledgeable ("PMK") for all categories requested in their Second Amended PMK Deposition Notice.

Relief under 473(b) is discretionary here. "The mandatory relief provision of section 473(b) provides, as pertinent, "Notwithstanding any other requirements of this section, the court *shall*, whenever an application for relief is made no more than six months after entry of judgment, in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake,